

## 25STCV19410 25STCV19410

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Christine Rasho, et al. v. General Motors, LLC

PLAINTIFFS' MOTION FOR ATTORNEY'S FEES, COSTS, AND EXPENSES

MOVING PARTY: Plaintiffs Christine Rasho and Banipal Shamoon

RESPONDING PARTY(S): Defendant General Motors, LLC

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Plaintiffs Christine Rasho and Banipal Shamoon (collectively, Plaintiffs) allege they purchased a defective vehicle from defendant General Motors, LLC (Defendant). Plaintiff filed this action for breach of warranty under the Song-Beverly Act.

On March 5, 2026, Plaintiffs filed a Notice of Settlement of Entire Case.

On May 4, 2026, the Court ordered the complaint dismissed without prejudice and reserved jurisdiction in accordance with Code of Civil Procedure, section 664.6 for enforcement purposes, including motions.

On August 11, 2026, Plaintiffs filed a Motion for Attorney Fees and a Memorandum of Costs. Defendant opposed.

TENTATIVE RULING:

Plaintiffs' Motion for Attorney's Fees is GRANTED in the amount of \$13,649.48.

Plaintiffs' Motion for Costs is GRANTED in the amount of \$2,629.28.

Plaintiffs are ordered to give notice, unless waived.

DISCUSSION:

## Motion for Attorney's Fees, Costs, and Expenses

### I. Analysis

#### A. The Motion is Timely

Plaintiffs move for an award of attorney's fees, costs and expenses. In Opposition, Defendant argues that this attorney's fees motion is untimely and should be denied in its entirety. The Court disagrees.

On March 5, 2026, Plaintiffs filed a Notice of Settlement. On May 4, 2026, the Court ordered the complaint dismissed without prejudice and reserved jurisdiction in accordance with Code of Civil Procedure, section 664.6. (May 4, 2026, Minute Order.) In the May 4, 2026, hearing, both parties waived notice. (Ibid.) Plaintiff received no notice of entry of dismissal from the Court nor Defendant.

The issue of timeliness for attorney fees motions in Song-Beverly actions has been recently addressed by the Court of Appeal.

Rule 3.1702 of the California Rules of Court governs motions for attorney fees in civil cases. A motion for fees incurred up to the time of judgment in the trial court "must be served and filed within the time for filing a notice of appeal under rules 8.104 and 8.108 in an unlimited civil case." With exceptions not relevant to this appeal, the time for filing a notice of appeal is the earlier of 60 days after service of notice of entry of judgment or 180 days after entry of judgment. A voluntary dismissal is "effectively a 'judgment'" within the meaning of the rule prescribing the time to appeal. Thus, "the clock starts to run [on the time to move for attorney fees] from either the service of notice of entry of judgment or dismissal (starting a 60-day clock), or if no such notice is given, the entry of judgment or dismissal (starting a 180-day clock)."

(Hatlevig v. General Motors LLC (2026) 118 Cal.App.5th 644, 649, internal citations omitted.)

While Defendant is correct that the parties waived notice in the hearing, this waiver does not begin the 60-day clock under rule 8.104(1)(A) or (B). Instead, the 180-day clock under rule 8.104(a)(1)(C) applies. California Rules of Court, rule 8.104(a)(3) states:

If the parties stipulated in the trial court under Code of Civil Procedure section 1019.5 to waive notice of the court order being appealed, the time to appeal under (1)(C) applies unless the court or a party serves notice of entry of judgment or a filed-endorsed copy of the judgment to start the time period under (1)(A) or (B).

"Indeed, the court rules expressly provide that a party's waiver of notice of ruling does not automatically trigger the shorter 60-day jurisdictional time limits for filing notices of appeal, even where the party's waiver of notice occurs in open court and is entered into the minutes, as allowed under Code of Civil Procedure section 1019.5. Notwithstanding the statutory waiver of notice, the prevailing party still must comply with the service provisions in the court rules in order to shorten the appeals period from 180 days to 60 days." (In re Marriage of Lin (2014) 225 Cal.App.4th 471, 476; E.M. v. Los Angeles Unified School Dist. (2011) 194 Cal.App.4th 736, 744 ["following the July 31, 2009 order of dismissal, neither the superior court clerk nor any of the parties served a document entitled "Notice of Entry" of the order of dismissal. Therefore, plaintiff had 180 days within which to file notice of appeal from the July 31, 2009 order of dismissal."])

Here, there is no dispute the parties waived notice of the dismissal under Code of Civil Procedure, section, 1019.5. Further, there is no dispute that neither the Court nor Defendant served notice of entry of dismissal on Plaintiffs. Therefore, the 180-day clock of California Rules of Court, rule 8.104(a)(1)(C) applies as instructed by rule 8.104(a)(3).

As the dismissal was entered on May 4, 2026, Plaintiffs were required to file this instant motion by November 4, 2026. Plaintiffs filed this instant motion on August 11, 2026, and is therefore timely.

#### B. Entitlement to Fees

On January 23, 2026, the parties resolved this case. (Barry Decl. ¶8.) Pursuant to the settlement agreement, Defendant agreed that Plaintiffs were the prevailing party and entitled to attorney's fees, costs, and expenses. (Barry Decl. ¶8.)

Plaintiffs now move for an order awarding attorney's fees and costs totaling \$32,427.18. This amount consists of: (1) \$27,089.00 in attorney fees; (2) \$2,629.28 in costs and expenses; and (3) a 1.1 multiplier enhancement on the attorney fees (or \$ \$2,708.90). (See Mot. at p. 1.)

Civil Code, section 1794(d) provides:

(d) If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.

(Civ. Code, § 1794, subd. (d) [emphasis added].)

Here, there appears no dispute that Plaintiffs are the prevailing party under the Song-Beverly Consumer Warranty Act and the Settlement Agreement between the parties allows Plaintiffs to recover their reasonable fees. Accordingly, Plaintiffs are entitled to an award of reasonable attorney fees as the prevailing party.

#### C. Reasonableness of Fees (Lodestar)

The determination of reasonable amount of attorney fees is within the sound discretion of trial courts. (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095; Akins v. Enterprise Rent-A-Car Co. (2000) 79 Cal.App.4th 1127, 1134.) "The determination of what constitutes a reasonable fee generally 'begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate....'" "[T]he lodestar is the basic fee for comparable legal services in the community; it may be adjusted by the court based on factors including, as relevant herein, (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award...." (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) In setting the hourly rate for an attorney fees award, courts are entitled to consider the rate of "fees customarily charged by that attorney and others in the community for similar work." (Bihun v. AT&T Information Systems, Inc. (1993) 13 Cal.App.4th 976, 997 [affirming rate of \$450 per hour], overruled on other grounds by Lakin v. Watkins Associated Indus. (1993) 6 Cal.4th 644, 664.) The burden is on the party seeking attorney fees to prove reasonableness of the fees. (Center for Biological Diversity v. County of San Bernardino (2010) 188 Cal.App.4th 603, 615.)

The Court has broad discretion in determining the amount of a reasonable attorney's fee award which will not be overturned absent a "manifest abuse of discretion, a prejudicial error of law, or necessary findings not supported by substantial evidence." (Bernardi v. County of Monterey (2008) 167 Cal.App.4th 1379, 1393-94.) The Court need not explain its calculation of the amount of attorney's fees awarded in detail; identifying the factors considered in arriving at the amount will suffice. (Ventura v. ABM Industries Inc. (2012) 212 Cal.App.4th 258, 274-75.)

It should be noted that state trial court opinions are unpublished and have no precedential value. (Neary v. Regents of Univ. of Calif. (1992) 3 Cal.4th 273, 282.) Likewise, “[w]hile unpublished federal district court opinions are citable, they do not constitute binding authority.” (Gong v. City of Rosemead (2014) 226 Cal.App.4th 363, 375.)

## 1. Reasonable Hourly Rate

Plaintiffs were represented by The Barry Law Firm, which staffed five attorneys on the matter. The attorney’s billed between \$375 and \$695 per hour. (Barry Decl., Exh. 2.)

Plaintiff is seeking 51.6 hours for a total of \$27,089.00. (Mot. at p. 14.) This gives a blended hourly rate of \$524.98 per hour. [FN 1] Here, under the totality of the circumstances and based upon general prevailing rates in the Los Angeles area for this type of litigation, this Court finds that a blended rate of \$524.98 per hour is reasonable given this Court’s considerable experience in Song-Beverly cases, many of which culminate with an attorney’s fees motion. This determination considers the complexity of the case, the quality of services provided, and the attorneys’ experience. An award at this rate comes with the expectation that the attorney works in an efficient manner that reflects the premium paid for his or her services. The Court considers this fact in addressing the reasonableness of the hours expended.

## 2. Number of Hours Reasonably Expended

Beginning to end, Plaintiff seeks compensation for a total of 51.6 hours on this case. (Mot. at p. 12.) Of those hours, a staggering 20.7 hours includes this instant motion, the anticipated response to a motion to tax costs, as well as anticipated expenses at this hearing.

“It is the burden of the challenging party to point to the specific items challenged [within the moving party’s verified billing invoice], with a sufficient argument and citations to evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488.)

In opposition, Defendant contends the hours purportedly spent by Plaintiffs’ counsel are excessive. Defendant highlights multiple entries in the billing records it contends are excessive and duplicative. This Court agrees is considerable part.

Here, this action was filed June 30, 2025. The docket reflects very little motion practice consisting of Defendant’s motion for protective order and Plaintiff’s motion for reconsideration of the same. This action lasted just seven months. Further, there was nothing particularly complex or unique about this case. The issues involved were applicable to other consumers’ vehicles, thereby triggering economies of scale in terms of Plaintiffs’ counsel’s efficiency in litigating this type of lemon law case. Litigating this matter should not have required anything more than slight factual modification to existing boilerplate. Consistent with these observations, Counsel’s billing records reflect a series of repetitive administrative-type tasks. Further, Plaintiffs’ counsel has brought similar attorney’s fees motions routinely demonstrating proficiency in filing such motions. (Barry Decl. ¶¶22-61.) Therefore, this instant motion should have taken minimal effort given Plaintiff counsel’s extensive experience in bringing these motions for attorney fees.

Considering these facts, this Court ultimately agrees that in some instances, the time quoted is excessive under the circumstances. In light of the foregoing discussion, and in view of the totality of the circumstances, the Court finds that the total amount of reasonable attorney’s fees in this case, using a lodestar methodology, is \$13,649.48. This was calculated by multiplying the hourly rate of \$524.98 by 26 hours, which this Court deems to be the reasonable time spent on all tasks in the matter including the time spent in support of this instant motion and the anticipated time spent at the hearing.

Plaintiff seeks a multiplier of 1.1. “The award of a multiplier is in the end a discretionary matter largely left to the trial court.” (Yes in My Back Yard v. City of Culver City (2023) 96 Cal.App.5th 1103, 1122 [citation and internal quotations omitted].) The Court in its discretion declines to apply a multiplier given this was a relatively standard Song-Beverly case with no novel or complex issues of law.

Accordingly, Plaintiffs' Motion for Attorney's Fees is GRANTED in the amount of \$13,649.48.

### 3. Costs and Expenses

Plaintiffs seek costs in the amount of \$2,629.28. (Memo of Costs.)

First, the Court finds Defendant's opposition to this memorandum of costs untimely. Motions to tax costs must be filed within 15 days' service of the memorandum of costs, plus any applicable extensions based on method of service. (Cal. Rules of Court, rule 3.1700, subd. (b)(1).) This memorandum of costs was filed on August 11, 2026. A timely motion to tax should be filed by August 28, 2026. However, this opposition was not filed until September 2, 2026. Therefore, it is untimely.

Even if the Court were to consider the motion on its merits, the Court would still deny striking Plaintiffs costs. The scope of recoverable costs under Civil Code section 1794, subdivision (d), is broader than the scope of recoverable costs under Code of Civil Procedure, section 1033.5. "[I]n enacting Civil Code section 1794, subdivision (d) the Legislature intended the phrase 'costs and expenses' to cover items not included in 'the detailed statutory definition of 'costs' set forth in Code of Civil Procedure section 1033.5. [Citation.]" (Warren v. Kia Motors Am., Inc. (2018) 30 Cal.App.5th 24, 42.) Thus, Plaintiff's claimed costs are not limited to those set forth in Code of Civil Procedure, section 1033.5 and are recoverable on their face. Defendants disputed categories such as jury fees, court reporter fees, filing fees, travel, and mediation costs are reasonable in the prosecution of a lemon law case and appear to have been reasonably incurred. (Code Civ. Pro., §1794, subd. (d); See Jensen v. BMW of N. Am., Inc. (1995) 35 Cal.App.4th 112, overruled on other grounds in Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189.)

Accordingly, Plaintiff's Motion for Costs is GRANTED IN ITS ENTIRETY in the amount of \$2,629.28.

IT IS SO ORDERED.

Dated: September 16, 2026 \_\_\_\_\_

Randolph M. Hammock

Judge of the Superior Court

FN 1 - It is well settled that utilizing a "blended" hourly rate for lodestar methodology is accepted in Song Beverly attorney's fee motions. (See, e.g, Mikhaeilpoor v. BMW of N. Am., LLC (2020) 48 Cal.App.5th 240.)